Till 2019, the erstwhile State of Jammu and Kashmir had its own constitution and thus enjoyed a special status by virtue of Article 370 of the Constitution of India. In 2019, this special status was abolished by a presidential order known as "The Constitution (Application to Jammu and Kashmir) Order, 2019". This order superseded the earlier order known as "The Constitution (Application to Jammu and Kashmir) Order, 1954". The 2019 order extended all the provisions of the Constitution of India to Jammu and Kashmir also.

Further, the Jammu and Kashmir Reorgani sation Act, 2019, bifurcated the erstwhile State of Jammu and Kashmir into two separate Union territories, namely, the Union territory of Jammu & Kashmir and the Union territory of Ladakh.

2. Drawn from Various Sources

The Constitution of India has borrowed most of its provisions from the Constitutions of various other countries as well as from the Government of India Act of 1935[3]. Dr. B.R. Ambedkar proudly acclaimed that the Constitution of India has been framed after 'ransacking all the known Constitutions of the World'[4].

The structural part of the Constitution is, to a large extent, derived from the Government of India Act of 1935. The philosophical part of the Constitution (the Fundamental Rights and the Directive Principles of State Policy) derives its inspiration from the American and Irish Constitutions, respectively. The political part of the Constitution (the principle of Cabinet Government and the relations between the Executive and the Legislature) has been largely drawn from the British Constitution[5].

The other provisions of the Constitution have been drawn from the Constitutions of Canada, Australia, Germany, USSR (now Russia), France, South Africa, Japan and so on.

The most profound influence and material source of the Constitution is the Government of India Act, 1935. The Federal Scheme, Judiciary, Governors, Emergency Powers, the Public Service Commissions and most of the administrative details are drawn from this Act. More than half of the provisions of Constitution are identical to or bear a close resemblance to the Act of 1935[6].

The features (provisions) of the Constitution that have been borrowed from various sources are mentioned in Table 4.4.

3. Blend of Rigidity and Flexibility

Constitutions are also classified into rigid and flexible. A rigid Constitution is one that requires a special procedure for its amendment, as for example, the American Constitution. A flexible constitution, on the other hand, is one that can be amended in the same manner as the ordinary laws are made, as for example, the British Constitution.

The Constitution of India is neither rigid nor flexible, but a synthesis of both. Article 368 provides for two types of amendments:

1. Some provisions can be amended by a special majority of the Parliament, i.e., a two-third majority of the members of each House present and voting, and a majority of the total membership of each House.